
The Walthamstow Murder

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he escapes a very questionable boon, and may indulge the complacency of mind that asked, as its best wish, for a lot neither of poverty nor riches. His family will fare as well as his neighbour's, if he behave circumspectly, and with a due regard to the fitness of things. If he imitates his wealthier neighbours, enriched by the accumulations of three or four generations, and sets up a large establishment and a carriage and pair, when two maid-servants and walking afoot would better suit his means, he will probably come to grief as he deserves. But a modest competence may be honourably earned, and still leave time for a little original research, and not a little quiet unremunerated work, while the good-will, and even the esteem, of those who surround him, is often offered more freely than if his income, or even a larger one, were derived from trade. And, on the whole, it is pretty certain that, taking the bad with the good, the disadvantages with the advantages, the lot of medical men is neither very much better nor very much worse than that of those about him; provided, that is, he keeps his health. On this point Dr. Allbutt has not touched, and yet it is one of the utmost importance to those he was addressing. The medical profession never has failed, any more than the military, in freely staking life for life when danger of pestilence, or infectious illness, demanded it; and we may take it as certain that they never will, whether the public glorify them or not in consequence. Dr. Allbutt's tribute to the noble self-sacrifice of Messrs. Burroughes, Swann, and Libby, only reminded us, in this respect, of what we all know and take for granted. But there is a recklessness of life, which doctors show in their own case, that is often very reprehensible. They certainly would not allow their patients to eat irregularly, to sleep too little, nor to continue to work long after the powers of jaded nature are quite exhausted; and yet these are things they are themselves prone to do. If some of this is due to the harassing nature and irregular incidence of their occupation, very much of it might be obviated by appeals to the consideration of the public, or, if it must be so, to their self-interest, and by firm determination on the part of the profession to do their duty to themselves, in order to be able to do it properly to their clients. How many brothers has every doctor known overborne in the struggle by the unselfish, and yet we fear it must also be termed unwise, neglect of themselves in order to serve the public. The profession is not long-lived, and, perhaps, never can hope to compete, in this respect, with the clergy or the lawyers; but determined efforts at regularity on their own parts, and some help from their patients, would certainly reduce the disparity that exists at present; and we trust that, as time goes on, both of these courses may be found to have greater play.

One note struck in the address, if sounding at first a little discordant, will, we are convinced, prove more harmonious with the true principles of melody, the longer it is listened to. To Dr. Allbutt's mind, the patching up of a man's clay conveys no necessarily inherent nobleness. A man, he says, may sell fish to the glory of God, and may practise the healing art, or even win souls, as the saying is, from motives that will not bear the light of scrutiny. The way in which work of any kind is done, as far as its purely moral value is concerned, depends on the spirit of the doer, and not on the character of the work. True, it is probably easier to supply fair quality of excellence of workmanship where human suffering is the material to be moulded, than in the ordinary work of trade and business. But let no man be so carried away by the assumed nobility of his calling as to work his profession for his own glory or gain regardless of the good of his fellows, or even of still higher aims. Motive, it is evident, must be the test of the morality of action, since work can be turned out, of apparently equal excellence, from the most opposite motives, from a wise egoism on the one hand, or a wise altruism on the other, for example; only the conscience of the doer and a higher power being capable of determining from which source it springs. We are happily spared the trouble of judging of other men's motives, since it is absolutely

impossible in most cases to find them out; but to each man for himself it is the highest question he can ask, the honest answer determining for him the only verdict in which he has an abiding interest. It is the same with the effects of sanitary work. To live long is not the end of life. "Better fifty years of Europe than a cycle of Cathay." Good health is not an end, but a means; and, if it is not to be used for useful work, it were better that it had not been. But, while all this is true, it must not be forgotten that good health gives a man extra chances. The way in which he uses them is his chief concern; and, while we freely admit that some of the most delicate men that ever lived have also been among the noblest, we fail to see any necessary connection between weakness and high moral purpose, or any inherent incompatibility in theory and practice between strength of body and fine quality of mind. The world has lost much by the delicacy of Clifford and the premature decay of Keats; and, while we are no advocates for rash legislation founded on an immature science, we feel that in the interests of all it must be good to aim at the highest bodily health in combination with the finest qualities of mind. Weakly men have often, indeed, given the strongest promise; but most of the leaders in science, statesmanship, and literature, have at least had such constitutions as enabled them to see over the hill-top of life, while many of them have actually lived long. As things are now, particularly, it is almost hopeless for any man to achieve success or make his mark till the period of middle life begins to tend towards age.

A panegyric of general practitioners is not out of place in this address. The bulk of the profession must be found in this division of it. Specialism has, no doubt, been on the increase for some time, and we shall certainly see further developments of it; but, on the other hand, the specialism of one generation tends to become the general heritage of the next, and in this way the number of branches in which specialism is permanently possible tends to become smaller. If, therefore, medicine has done much that is of value in the past, we shall probably find many of her eminent names among her most numerous followers. In any case, we are pleased when a man of note stands up for the somewhat underrated general practitioner. Men who begin the day by prescribing for bronchitis, proceed to examine a throat, go on to remove a foreign body from the eye, and then lance a baby's gums, while they advise concerning the dysentery of another, next open an abscess in deep-seated parts, and, after a varied day, get up in the night to apply the long forceps above the brim or to perform cephalotripsy—such men must have good mental qualities, and among these must be reckoned skill, tact, acuteness of perception, promptitude, self-reliance, and fertility of resource, with a large amount of general information. When it is added that some of these men have a wide culture, and possess philosophic powers of mind which perpetual interruptions alone prevent them from using in a permanent manner, we feel that, while such men need no panegyric, we are yet pleased that it has been so generously offered. If it be true that they have their faults, some of which have been faithfully mentioned to them, we believe that these are gradually disappearing before the influences of the wider culture they now possess; and we are in hopes that, as time goes on, we shall witness, not, indeed, perfection, but as much improvement over the present as the present, on the whole, shows over the past.

THE WALTHAMSTOW MURDER.

THE decision of the Home Secretary in this case is both satisfactory and unsatisfactory. It is satisfactory, because it spares us the shocking spectacle of the execution of a lunatic; and it is unsatisfactory, because it proves the existence of very grievous defects in our judicial system. Those who know the practice of the Home Office in reviewing capital sentences, will understand that Sir William Harcourt has only intervened in this case on the most conclusive evidence of the prisoner's insanity being submitted to him.

It may be taken as demonstrated beyond reasonable doubt that Gouldstone was insane when he murdered his children; and yet this indubitable lunatic was found guilty by the jury without the slightest hesitation, was sentenced by the judge without hope of mercy, and would have been executed, had not the medical profession interfered on his behalf. It will be remembered that the judge made light of the evidence of insanity, and that several leading organs of public opinion approved the verdict and sentence. But for the strong representations of the medical press, and of individual medical men, Gouldstone would have atoned by this time with his life for the crime of being afflicted with a terrible disease, which has scourged his family for three generations, and a powerful inducement would have been thus held out to other madmen to go and do likewise; for, as Dr. Guy has shown, the execution of a lunatic is generally followed by a copious crop of lunatic homicides. It is scarcely an exaggeration to say that, in the present state of the law, the medical profession in this country has to play the part of a vigilance committee in connection with trials for murder, and has to interpose every now and then to prevent the shame and scandal of the strangling of a miserable being bereft of reason, so slow are the courts to recognise insanity, so antagonistic are they to science, and so little is it anybody's business to ascertain whether a prisoner put on his trial for his life is of sound mind or not. The duty thus thrown on the medical profession is invidious, and brings some obloquy; and the fearless manner in which it is discharged, perhaps, accounts in some degree for the scant courtesy with which members of the profession are not unfrequently treated, when they appear as witnesses in courts of justice. Mute acquiescence in judicial decisions, or a deferential acceptance of the deliverances of judicial wisdom on all subjects in heaven and earth, would secure for the profession, with the bench and bar, a reputation for sagacity and moderation higher than that which it now enjoys. But, fortunately, the medical profession never listens to the suggestions of mere worldly prudence where scientific truth and practical humanity are at stake. No matter how distasteful its utterances may prove in high quarters, it speaks out boldly when it thinks a miscarriage of justice has taken place; and, setting an example to all other professions in this respect, exerts itself, actuated by a sense of public duty only, to insure that right be done. As long as the medical profession is constituted as it now is, it will not shrink from what it regards as its duty; but it seems neither fair nor politic that it should be called upon any longer to correct judicial blunders which ought never to have been committed. The time has arrived for a radical reform in the conduct of murder-trials in which the defence of insanity is set up. It cannot be tolerated any longer that this momentous question—momentous alike to the prisoner and the public—should be determined by some fusty maxims, and some snatches of hap-hazard evidence, founded on a ten-minutes' examination, at the last moment, of a reticent or trembling wretch. It is almost as well known beforehand in which cases of murder the defence of insanity will be set up, as it is in which cases the theory of poisoning will be advanced by the prosecution; and it is as easy to be prepared for the defence in the one set of cases as for the prosecution in the other.

Let us have two or three competent medical men appointed by the Government annually, as the State analytical chemists now are, on the nomination of the Presidents of the Colleges of Physicians and Surgeons, or other high medical authority, to inquire into the mental state of all persons charged with murder, about whose sanity there is the smallest doubt; and let facilities be given to them for carrying out their inquiries; and we shall have no more disputes over the responsibility of a convict lying under sentence of death. The testimony of such witnesses would be beyond any suspicion of bias, and would be founded on a broad basis of observation. It would put a stop to mere speculative allegations of insanity in murder-cases, and carry conviction to the public mind, relieving it,

once for all, from the anxious misgivings by which it is now so often disturbed; in cases in which the death-penalty is involved. The reports of these witnesses would afford safe guidance to the judges, saving them from those errors the subsequent rectification of which now entails some discredit upon them, and easing them of a load of responsibility.

The necessity for a change in the present practice in dealing with murder-cases in which mental derangement is suspected, might be illustrated in a great variety of ways; but there is one argument in its favour which will weigh powerfully with the English people, and that is that the existing system is uncertain, and might be perverted by unscrupulous officials to grave abuses. Why, it might be asked, has not the youth Benn, who murdered his father at Matlock, been brought to trial? He was committed, but has never appeared at the assizes; and the statement is, that he has been removed to an asylum. We have no doubt that he was insane, and that all necessary legal formalities have been observed in his removal; but it is certainly open to observation that such different treatment should have been meted out to him and to Gouldstone. Both of them perpetrated unnatural murders, which looked like the acts of madmen; both of them were committed for trial, but one of them was immediately sent off to an asylum, while the other was brought before a jury, condemned to death, and has very narrowly escaped hanging. Some private inquiry, which satisfied the Home Office, must have been held into Benn's mental state between his committal and the date fixed for his trial; but what we contend for, is no such secret investigation, but a systematic and prolonged examination between committal and trial in all such cases, the results of which shall be stated in open court, and be subjected to criticism there. We should have thought it an established and unassailable principle that every prisoner charged with murder should be brought to public trial, unless it should appear that the trial would put his life in imminent peril, and, under these circumstances, evidence to that effect should be submitted in open court. To admit that it is ever allowable for officials to put a bar to trial, and to remove a person charged with crime to an asylum, is to open the door to the possibility of serious evils. We are justly proud of the purity and high-mindedness of our officials, and know that they act with a single eye to the public welfare; but a time might come when the State had less immaculate servants, and then the rich murderer might go to Broadmoor, and the poor one to the gallows if the present duplex system of dealing with prisoners alleged to be insane were permitted to continue.

THE INTRODUCTORY ADDRESSES.

THE introductory addresses this year, of which we furnish abstracts, treat more than is usual of public questions, and show traces of a quickening of public interest and a more active attention to large social and professional questions, which we mark with great satisfaction. It has long been our object, in view of the great purposes of this Association and its aims, to animate the whole body of the profession with a sentiment of dignity, solidarity, and common interest in professional and public affairs. Medical occupations tend naturally, and in virtue of that scientific side of medicine which presents itself as one of its noblest and most essential purposes and occupations, to the contemplation of the individual and of the abstract. This scientific side of medicine, leading to the worship of the idols of the cave, we would wish also to exalt. It is that which makes the medical man rise superior to many other callings, in the unselfishness and the prominence of the philosophic character of his work; but the profession as a whole needs to regard itself as a body charged with duties to the entire community, which duties, year after year, become more important and far-reaching. The medical man of to-day is not only the healer, the philosopher, and the biologist, he is also the central spirit and the inspirer of a great social movement which aims at the physical elevation of the stand-